

		Defendant A&E Solutions (PMK) filed on 4-5-23 under ROA No 62. The depositions of Defendant—Alexis Mejia and the PMK shall occur within 30 days from the date of service of the notice of the court’s ruling at a location and time agreed upon by the parties. The court DENIES the Motion to the extent it requests a continuance because the trial was continued by Stipulation and Order filed on 6-9-23 under ROA No. 71. The court awards a monetary sanction in the amount of against Defendants, jointly and severally in the amount of \$1,800.00. (Code Civ. Proc. § 2025.450(g)(1); Cal. Rules of Court, rule 3.1348; Farivar Decl., ¶ 23.) The Motion is MOOT as to the request to continue trial because trial was continued pursuant to stipulation on 6-9-23. Plaintiff is to give notice.
15	30-2019-01076330 Sun v. Wu	Plaintiffs’ (Bin Sun, Shiming Liang Pang and Da Jen Gao) Motion to Allow Remote Testimony of Witnesses, filed on 5-17-23, under ROA No. 191, is CONTINUED to 10-24-23 at 9:00 a.m. in Department C32. Defendants’ (Feiwen Wu and Linchun Zhao, individually and as trustees of the Zhao Revocable Trust) Opposition to Plaintiffs’ Motion to Allow Remote Testimony of Witnesses (Opposition), filed on 9-15-23 under ROA No. 282, was not served on Plaintiffs 9 court days prior to the hearing and was not served by means reasonably calculated to ensure delivery by no later than the close of the next business day as required by Code of Civil Procedure section 1005, subdivisions (b) and (c). Specifically, although Plaintiff Bin Sun was served by both email and mail, Plaintiffs Da Jen Gao and Shiming Liang Pang were served by mail only to addresses in China. Further, given the untimely service of the Opposition and lack of a Reply, it is unclear if the Plaintiffs, who are currently unrepresented, are aware of the hearing on this Motion on 9-26-23. The court granted the Motion to be Relieved by Plaintiffs’ prior attorney on 8-15-23. (8-15-23 Minute Order.) The Order granted the Motion to be Relieved did not notify Plaintiffs that the next scheduled hearing in the action was on 9-26-23. (Order filed on 8-15-23 under ROA No. 276.) Therefore, the court CONTINUES the hearing on this Motion to 10-24-23 at 9:00 a.m. in Department C32. Defendants are to give notice.
16	30-2019-01064196 Alpay v. Alvord	Plaintiffs’ (John Alpay, Rochelle Alpay, Autumn Alpay, Saige Alpay, and Logan Alpay) Motion to Tax Costs

		(Motion), filed on 5-5-23 under ROA No. 575, is GRANTED in part and DENIED in part. Code of Civil Procedure section 1032, subdivision (a)(4) states, " 'Prevailing party' includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034." Code of Civil Procedure section 1032, subdivision (b), provides, "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." <i>Ladas v. California State Automobile Association</i> (1993) 19 Cal.App.4th 761, 773-774 (<i>Ladas</i>), states, " '[S]ection 1033.5, enacted in 1986, codified existing case law and set forth the items of costs which may or may not be recoverable in a civil action. [Citation.]' [Citation.] An item not specifically allowable under subdivision (a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if 'reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.' [Citation.] [¶] If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. [Citations.] Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. [Citations.] However, because the right to costs is governed strictly by statute [citation] a court has no discretion to award costs not statutorily authorized. [Citations.]" (Italics in <i>Ladas</i>.) The Motion seeks to tax the following items contained in Defendants' (Deborah Alvord Dorris and Gary Dorris) Memorandum of Costs filed on 4-18-23 under ROA No. 573: Item 4—Deposition Costs; Item 11—Court Reporter Fees; Item 12—Models, Enlargements, Photocopies of Exhibits; and Item 16—Other. The Motion does not
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	dispute that Defendants were the prevailing parties in this action within the meaning of Code of Civil Procedure section 1032, subdivision (a)(4). Item 4—Deposition Costs: Code of Civil Procedure section 1033.5, subdivision (a)(3) allows the recovery of costs for: "Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." Plaintiffs seek to tax costs for ". . . the depositions of (1) Erin Beyer - \$1,090.00; (2) Linda Escandon - \$699.00; and (3) John Alpay - \$1,498.50." (Motion; 4:28-5:1.) The Motion states, ". . . only John Alpay testified at trial. Indeed, the depositions of Erin Beyer, Linda Escandon, and a significant portion of John Alpay's deposition was their [sic] necessary to the conduct of the litigation because it related solely to the CC&R Claims." (Motion; 5:1-4.) Defendants have shown the depositions were necessary. Specifically, Defendants have shown that Erin Beyer was Plaintiffs designated retained expert on property damages, and therefore it was necessary for Defendants to depose Erin Beyer. (Russo Decl., ¶¶ 2, 5, and Exhibit 1.) Defendants have also shown that the deposition of Linda Escandon was necessary because Linda Escandon was a named Plaintiff who was not dismissed from the case until 2-24-23. (Request for Dismissal filed on 2-24-23 under ROA No. 472.) Linda Escandon was suing Defendants for damages as to the fourth, sixth, and seventh causes of action contained in Plaintiffs' Second Amended Complaint (SAC) filed on 4-1-21 under ROA No. 205.) plaintiff who, until the eve of trial, was suing Defendants for damages under the Fourth, Sixth and Seventh Causes of Action. Finally, Defendants have shown that John Alpay's deposition was necessary because Mr. Alpay was a named Plaintiff on all of the causes of action in the SAC. Therefore, the court DENIES the Motion as to Item 4. Item 11—Court Reporter Fees: Code of Civil Procedure section 1033.5, subdivision (a)(9) allows the recovery of costs for: "Transcripts of court proceedings ordered by the court." Section 1033.5, subdivision (b), provides, "The following items are not
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		allowable as costs, except when expressly authorized by law: . . . [¶] (5) "Transcripts of court proceedings not ordered by the court." Defendants' Opposition to Motion to Tax Costs (Opposition), filed on 8-31-23 under ROA No. 591, concedes ". . . that the Court did not order that the parties provide a court reporter. . . ." (Opposition; 6:1-2.) Therefore, the court GRANTS the Motion as to Item 11. Item 12—Models Enlargements, Photocopies of Exhibits: Code of Civil Procedure section 1033.5, subdivision (a)(13), allows the recovery of costs for: "Models, the enlargements of exhibits and photocopies of exhibits . . . if they were reasonably helpful to aid the trier of fact." The Motion states, "Opening and closing graphics are not 'models and enlargements of exhibits.' Without additional information from Defendants, Plaintiffs operate under the assumption that these costs are not allowed" (Motion; 5:21-22.) Defendants have shown that the charge was incurred by Defendants to photocopy the Defendants' Trial Exhibits for the trial exhibit binders. (Russo Decl., ¶ 13.) These photocopies were reasonably helpful to aid the trier of fact. Therefore, the court DENIES the Motion as to Item 12. Item 16—Other: Code of Civil Procedure section 1033.5, subdivision (a)(16), allows the recovery of costs for: "Any other item that is required to be awarded to the prevailing party pursuant to statute as an incident to prevailing in the action at trial or on appeal." Code of Civil Procedure section 1033.5, subdivision (c), states, "(c) An award of costs shall be subject to the following: [¶] (1) Costs are allowable if incurred, whether or not paid. [¶] (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. [¶] (3) Allowable costs shall be reasonable in amount. [¶] (4) Items not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion." The declaration in support of the Opposition states, "The \$470 for CourtCall is for hearings on September 22, 2020, October 13, 2020, March 4, 2021 and June 8, 2021. The Court had not yet transitioned to its free video appearance system. These costs are not expressly allowable under
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		CCP Section 1033.5, but they are reasonable. The costs are in the amount that everyone was paying for CourtCall at that time, and Mr. Pitet also appeared by CourtCall for most of our appearances in this case.” (Russo Decl., ¶ 14.) Although Defendants have sufficiently demonstrated that these costs are reasonable in amount, Defendants have not shown that these costs were reasonably necessary to the conduct of the litigation. Rather, these costs are merely convenient and beneficial to the preparation of the litigation. For example, the declaration in support of the Opposition does not indicate that the costs incurred were for law and motion hearings related to the litigation. Therefore, the court GRANTS the Motion as to Item 16. Based on the above, the court GRANTS Plaintiffs’ (John Alpay, Rochelle Alpay, Autumn Alpay, Saige Alpay, and Logan Alpay) Motion to Tax Costs, filed on 5-5-23 under ROA No. 575, as to Items 11 and 16. The court DENIES the Motion as to Item Nos. 4 and 12. Plaintiffs are to give notice.
17	30-2022-01284597 KTB Sunkist LLC v. Talt 10:00 a.m.	Status Conference.
18	30-2021-01229735 Ruiz v. Duran 11:00 a.m.	Case Management Conference.
19	30-2022-01261142 Daverson v. Buccola 11:00 a.m.	Case Management Conference.
20	30-2020-01152514 Youssef v. Costco Wholesale Corporation 11:00 a.m.	Order to Show Cause regarding Dismissal.
21	30-2022-01243106 Carbon Capital Fund, LLC v. Saavedra 11:00 a.m.	Case Management Conference. Order to Show Cause Hearing.
22	30-2020-01145810	Status Conference.